

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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SUMMONS

JERRY WADE,

Index No.:

Plaintiff,

The Basis of Venue is:
Location of Incident

-against-

THE CITY OF NEW YORK, POLICE OFFICER ANGEL CABA, Tax No. 968981, POLICE OFFICER JALEN McCRAY, Tax No. 967193, CAPTAIN JAMES BERK, Tax No. 949358, SERGEANT TROY PEACOCK, Tax No. 940553, POLICE OFFICER MATTHEW FAGAN, Tax No. 934836, POLICE OFFICER CHARLES JI, Tax No. 965761, SERGEANT ARTHUR MCCARTHY, Tax No. 949289, DETECTIVE CHRISTOPHER BREIDENBACH, Tax No. 948307, and POLICE OFFICERS JOHN DOES #s 1-10 (names and numbers of whom are unknown at present),

Plaintiff designates Kings County as the place of trial.

Defendants.

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To the above-named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
February 21, 2024

Yours, etc.

David M. Hazan

JACOBS & HAZAN, PLLC
DAVID M. HAZAN, ESQ.
Attorney for Plaintiff
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 577-2690

TO: City of New York, Corporation Counsel, 100 Church Street, NY, NY 10007
POLICE OFFICER ANGEL CABA, Tax No. 968981, 73rd Pct.
POLICE OFFICER JALEN McCRAY, Tax No. 967193, 73rd Pct. Detective Squad
CAPTAIN JAMES BERK, Tax No. 949358, Internal Affairs
SERGEANT TROY PEACOCK, Tax No. 940553, 73rd Pct.
POLICE OFFICER MATTHEW FAGAN, Tax No. 934836, Counterterrorism Division
POLICE OFFICER CHARLES JI, Tax No. 965761, 73rd Pct.
SERGEANT ARTHUR MCCARTHY, Tax No. 949289, Drug Enforcement Task Force
DETECTIVE CHRISTOPHER BREIDENBACH, Tax No. 948307, Criminal Intelligence
Section

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X

JERRY WADE,

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER ANGEL CABA, Tax No. 968981, POLICE OFFICER JALEN McCRAY, Tax No. 967193, CAPTAIN JAMES BERK, Tax No. 949358, SERGEANT TROY PEACOCK, Tax No. 940553, POLICE OFFICER MATTHEW FAGAN, Tax No. 934836, POLICE OFFICER CHARLES JI, Tax No. 965761, SERGEANT ARTHUR MCCARTHY, Tax No. 949289, DETECTIVE CHRISTOPHER BREIDENBACH, Tax No. 948307, and POLICE OFFICERS JOHN DOES #s 1-10 (names and numbers of whom are unknown at present),

Defendants.

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Plaintiff JERRY WADE, by his attorneys, Jacobs & Hazan, PLLC, as and for his Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. Plaintiff alleges that on February 21, 2021, at approximately 10:00 pm he was lawfully driving in the vicinity of East 98th Street and East New York Avenue, County of Kings, State of New York at which time he was falsely arrested by the individually named police officer defendants and transported to the 73rd Precinct against his will. The defendant police officers fabricated allegations against plaintiff to establish a basis for why they arrested him, and they charged him with crimes he did not commit and that the officers lacked probable cause to accuse him of committing. Plaintiff was arraigned in Kings County Criminal Court on February 22, 2021, shortly before midnight, approximately 26 hours after the defendant officers initially arrested plaintiff. Plaintiff was released from custody on his own recognizance at arraignment after he was charged with crimes he did not commit, and that

the officers lacked probable cause to accuse him of committing, including Operating a Motor Vehicle While Under the Influence of Alcohol. Plaintiff was required to appear in Kings County Criminal Court on approximately 14 occasions and endured a 1 year and two-month malicious criminal prosecution before all charges were dismissed and sealed in their entirety and terminated in plaintiff's favor on April 29, 2022. All charges brought against plaintiff were dismissed and sealed after the officers were cross examined during pre-trial hearings. After listening to the officers' testimony, the District Attorney's Office affirmatively moved to dismiss and seal the charges because there was "Insufficient Evidence" to prosecute plaintiff for the crimes he was charged with committing. Those officers that did not physically touch plaintiff but observed their fellow officers violating plaintiff's rights under New York State law and the Constitution of the United States but neglected to intervene to stop their fellow officers from continuing to violate plaintiff's rights under New York State law and the United States Constitution are liable to plaintiff for their failure to intervene. Plaintiff was deprived of his Constitutional and common law rights when the individual defendants unlawfully frisked, searched, interrogated, falsely arrested, maliciously prosecuted, and denied plaintiff the right to due process/ right to a fair trial in violation of the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution, the common law, and the laws of the State of New York.

PARTIES

2. Plaintiff JERRY WADE is a resident of the state of New York.
3. Defendant POLICE OFFICER ANGEL CABA, Tax No. 968981, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.
4. Defendant POLICE OFFICER ANGEL CABA, Tax No. 968981, was at all times relevant herein, assigned to the 73rd Precinct.
5. Defendant POLICE OFFICER ANGEL CABA, Tax No. 968981, is being sued in his individual and official capacity.
6. Defendant POLICE OFFICER JALEN McCRAY, Tax No. 967193, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.
7. Defendant POLICE OFFICER JALEN McCRAY, Tax No. 967193, was at all times relevant herein, assigned to the 73rd Precinct and is presently assigned to the 73rd Precinct Detective Squad.
8. Defendant POLICE OFFICER JALEN McCRAY, Tax No. 967193, is being sued in his individual and official capacity.
9. Defendant CAPTAIN JAMES BERK, Tax No. 949358, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

10. Defendant CAPTAIN JAMES BERK, Tax No. 949358, was at all times relevant herein, assigned to the 73rd Precinct and is presently assigned to the Internal Affairs Bureau.

11. Defendant CAPTAIN JAMES BERK, Tax No. 949358, is being sued in his individual and official capacity.

12. Defendant SERGEANT TROY PEACOCK, Tax No. 940553, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

13. Defendant SERGEANT TROY PEACOCK, Tax No. 940553, was at all times relevant herein, assigned to the 73rd Precinct.

14. Defendant SERGEANT TROY PEACOCK, Tax No. 940553, is being sued in her individual and official capacity.

15. Defendant POLICE OFFICER MATTHEW FAGAN, Tax No. 934836, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

16. Defendant POLICE OFFICER MATTHEW FAGAN, Tax No. 934836, was at all times relevant herein, assigned to the 73rd Precinct and is presently assigned to the Counterterrorism Division.

17. Defendant POLICE OFFICER MATTHEW FAGAN, Tax No. 934836, is being sued in her individual and official capacity.

18. Defendant POLICE OFFICER CHARLES JI, Tax No. 965761, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

19. Defendant POLICE OFFICER CHARLES JI, Tax No. 965761, was at all times relevant herein, assigned to the 73rd Precinct.

20. Defendant POLICE OFFICER CHARLES JI, Tax No. 965761, is being sued in her individual and official capacity.

21. Defendant SERGEANT ARTHUR MCCARTHY, Tax No. 949289, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

22. Defendant SERGEANT ARTHUR MCCARTHY, Tax No. 949289, was at all times relevant herein, assigned to the 73rd Precinct and is presently assigned to the Drug Enforcement Task Force.

23. Defendant SERGEANT ARTHUR MCCARTHY, Tax No. 949289, is being sued in her individual and official capacity.

24. Defendant DETECTIVE CHRISTOPHER BREIDENBACH, Tax No. 948307, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

25. Defendant DETECTIVE CHRISTOPHER BREIDENBACH, Tax No. 948307, was at all times relevant herein, assigned to the 73rd Precinct and is presently assigned to the Criminal Intelligence Section.

26. Defendant DETECTIVE CHRISTOPHER BREIDENBACH, Tax No. 948307, is being sued in her individual and official capacity.

27. Defendant New York City Police Officers John Does #s 1-10 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

28. Defendants New York City Police Officers John Does #s 1-10 are being sued in their individual and official capacities.

29. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees, and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees, and agents of the New York City Police Department.

30. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

31. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

32. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

33. By way of background, on the evening of February 21, 2021, plaintiff dropped a friend off at Kings County Hospital.

34. Thereafter, plaintiff intended to visit his aunt who lives in Brooklyn.

35. Plaintiff does not live in Brooklyn, and he is not very familiar with the streets in that area.

36. Plaintiff began lawfully driving from Kings County Hospital to his aunt's home after he left Kings County Hospital.

37. On February 21, 2021, at approximately 10:00 pm plaintiff was lawfully driving in the vicinity of East 98th Street and East New York Avenue, County of Kings, State of New York at which time he saw numerous police officers, including but not limited to the individually named police officer defendants, in the street in front of him.

38. Plaintiff drove very slowly toward where the police officers were located because he did not know why there were so many officers present in the street at that location.

39. As plaintiff approached the officers, they ordered him to stop his vehicle and plaintiff complied.

40. The individually named defendant police officers began screaming at plaintiff and called him a "Fucking Idiot!"

41. The defendants screamed at plaintiff and told him that he drove into an area that was under police investigation.

42. The defendants ordered plaintiff to reverse his vehicle until he gets to the previous intersection and to use a different road.

43. Importantly, there was not any police tape, signs, or barriers in the road to notify a driver that the area was under police investigation, and it was not possible for plaintiff to have known that the area was under investigation or that defendants did not want him to drive down that road until the defendants told him that the area was under police investigation, and he could not continue driving down that road.

44. Plaintiff became very nervous when the defendants began screaming at him and telling him that he had driven into an active crime scene.

45. When the defendant officers ordered plaintiff to reverse his vehicle out of the crime scene, they did not suspect and had no reason to suspect plaintiff was driving while intoxicated.

46. In fact, plaintiff did not drink any alcoholic beverages during the 24-hour period leading up to this incident, and he was not intoxicated at the time of the incident.

47. Plaintiff attempted to comply with the orders given by defendants who was screaming at him, and he shifted his vehicle into reverse.

48. However, when plaintiff reversed his vehicle, he bumped into a police vehicle that he did not realize had pulled directly behind him.

49. Plaintiff's vehicle hit the police vehicle very lightly, and the defendants admitted that there was no damage caused to the police vehicle.

50. Therefore, the defendants did not fill out an accident report about the incident.

51. Although plaintiff's vehicle bumped the police vehicle very lightly and caused no damage whatsoever to the police vehicle, the defendant police officers reacted to the incident by ordering plaintiff to exit his vehicle.

52. Plaintiff complied with the defendants and exited his vehicle and defendants unlawfully handcuffed plaintiff and falsely arrested him, without probable cause or legal justification.

53. At no time relevant herein did plaintiff behave in a manner that would lead a reasonable police officer to believe he was intoxicated.

54. Plaintiff spoke clearly and coherently, he was not slurring his speech, he did not have blood shot eyes, and he appeared completely steady on his feet.

55. Plaintiff asked the defendant officers several times what crime the officers were arresting him for committing, and the defendant officers initially refused to answer plaintiff.

56. Eventually the defendant police officers told plaintiff that it was obvious that plaintiff was being arrested because he had just driven his vehicle into a police vehicle.

57. In response, plaintiff conceded that he got into a minor accident with the police vehicle, and again asked the officers what crime he committed.

58. Plaintiff pointed out to the defendant officers that it is not a crime to get into a car accident.

59. Upon information and belief, the defendant officers realized that plaintiff was correct about the fact that they lacked an objective factual basis to establish probable cause to accuse plaintiff of committing a crime.

60. The defendant officers were unable to tell plaintiff what crime they arrested him for allegedly committing.

61. At no time relevant herein did plaintiff commit a crime or violate the law, nor did the officers possess objective facts to establish probable cause to believe plaintiff committed a crime or violated the law.

62. At no time prior to being arrested or at the scene of plaintiff's arrest did the officers ask plaintiff questions about whether he had had anything to drink that night, nor did the officers ask plaintiff to take a breathalyzer test or any other sobriety tests at the scene of his arrest.

63. Instead, plaintiff was placed in a police vehicle and transported to the 73rd Precinct, against his will.

64. The defendants did not decide what crime they wanted to charge plaintiff with until after they arrived at the 73rd Precinct.

65. When the defendant officers realized that a decision was made to charge plaintiff with driving while intoxicated.

66. The defendant officers transported plaintiff to the 78th Precinct IDTU Unit to unlawfully subject plaintiff to chemical tests and a breathalyzer.

67. When the defendant officers told plaintiff what crime they decided to accuse him of committing, Plaintiff realized that the officers were fabricating allegations against him, and he became very nervous about what the officers were doing to him.

68. When plaintiff arrived at the 78th Precinct for IDTU Testing, he calmly and clearly refused to undergo any chemical testing or other sobriety tests because the officers had already fabricated allegations against him, and he could not trust the test to be performed accurately.

69. All of the allegations made by the defendant officers against plaintiff, which the defendants allege gave them probable cause to arrest plaintiff for driving while intoxicated were fabricated by the defendants.

70. The officers falsely alleged that plaintiff "showed signs of intoxication due to the odor of alcoholic beverages, blood shot eyes, and aggressive demeanor," and that plaintiff was "combative, was swaying, and had bloodshot eyes."

71. Plaintiff did not have an odor of alcohol coming from him, he was not aggressive with the officers, he spoke to them calmly and clearly, he was not swaying, and he was steady on his feet, and he did not have bloodshot eyes.

72. All of the allegations made by the defendants against plaintiff to establish probable cause were fabricated by the officers to establish a basis for arresting plaintiff.

73. None of the allegations made by defendants were true and the defendant officers lacked probable cause to arrest plaintiff for committing any crime.

74. After plaintiff refused to take the chemical IDTU tests at the 78th Precinct, the officers drove him back to the 73rd Precinct whereat plaintiff was unlawfully searched, detained in a filthy holding cell for many hours, fingerprinted and photographed.

75. After many hours plaintiff was transported to Kings County Central Booking whereat the unlawful detention continued for many additional hours.

76. The officers provided the Kings County District Attorney's Office with false, misleading, and incomplete evidence to purportedly justify why they arrested plaintiff and charged him with committing crimes.

77. Plaintiff was arraigned in Kings County Criminal Court on February 22, 2021, shortly before midnight, approximately 26 hours after the defendant officers initially arrested plaintiff.

78. Plaintiff was released from custody on his own recognizance at arraignment after he was charged with crimes he did not commit, and that the officers lacked probable cause to accuse him of committing, including Operating a Motor Vehicle While Under the Influence of Alcohol.

79. Plaintiff was required to appear in Kings County Criminal Court on approximately 14 occasions and endured a 1 year and two-month malicious criminal prosecution before all charges were dismissed and sealed in their entirety and terminated in plaintiff's favor on April 29, 2022.

80. All charges brought against plaintiff were dismissed and sealed after the officers were cross examined during pre-trial hearings and after listening to the officers' testimony the District Attorney's Office affirmatively moved to dismiss and seal the charges because there was "Insufficient Evidence" to prosecute plaintiff for the crimes he was charged with committing.

81. Plaintiff was suspended from his job without pay and he lost approximately \$20,912 while he was suspended from his job without pay for 4 months.

82. Plaintiff's Driver's License was suspended at arraignment because of the charges brought against him.

83. Plaintiff had his license was reinstated approximately 1 month later when he appeared for a hearing at the DMV and the Hearings Officer reinstated his Driver's License at that time.

84. Having his driver's license revoked for approximately 1 month had a significant impact on plaintiff's life because he could not drive to visit his family members who he is very close with during that time, and plaintiff had difficulty performing many daily tasks that he routinely used his vehicle to complete, such as food shopping and completing other errands that would normally be very routine and take a short amount of time.

85. Due to the driver's license suspension plaintiff had to make other arrangements to be transported to and from the various stores and locations that he had to be present at, in order

to complete his daily activities that he needed to complete during the 1-month period of time the license was suspended.

86. At no time relevant herein did plaintiff commit a crime, nor did the defendant police officers possess an objective factual basis to establish probable cause to believe he committed a crime or violated the law.

87. Defendants provided the Kings County District Attorney's Office with false, misleading, and incomplete evidence and allegations about the evidence they allegedly possessed that purportedly formed defendants' basis for arresting plaintiff and charging him with crimes.

88. Those officers that did not physically touch plaintiff but observed their fellow officers violating plaintiff's rights under New York State law and the Constitution of the United States but neglected to intervene to stop their fellow officers from continuing to violate plaintiff's rights under New York State law and the United States Constitution are liable to plaintiff for their failure to intervene.

89. Plaintiff was deprived of his Constitutional and common law rights when the individual defendants unlawfully frisked, searched, interrogated, falsely arrested, maliciously prosecuted, and denied plaintiff the right to due process/ right to a fair trial in violation of the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution, the common law, and the laws of the State of New York.

90. Defendants falsely arrested and maliciously prosecuted plaintiff, without probable cause or legal justification.

91. Defendants violated plaintiff's right to due process when they provided the District Attorney's Office with false, misleading, and incomplete evidence which formed the basis for initiating the criminal prosecution against plaintiff.

92. Plaintiff was deprived of his constitutional and common law rights when the individual defendants unlawfully searched, questioned, frisked, falsely arrested, maliciously prosecuted, and denied plaintiff the right to due process in violation of the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution, the common law, and the laws of the State of New York.

93. The individually named defendant police officers have significant histories of having complaints filed against them by members of the public for engaging in police misconduct as NYPD police officers and violating the Constitutional Rights of members of the public, but the discipline by the NYPD on each of those occasions was insufficient to prevent the officers from continuing to engage in such misconduct because the NYPD does not sufficiently investigate allegations that a police officer violated the Constitutional Rights of an individual and did not sufficient punish defendants for the misconduct they previously engaged in.

94. Numerous complaints and lawsuits have been filed against the individually named defendants by members of the public throughout their careers, but most of the time the NYPD conducted a cursory investigation into the complaints and concluded that it did not possess enough evidence to determine whether defendants engaged in misconduct and therefore did not discipline them for many of the complaints made against them.

95. Defendants have continued to violate the Constitutional Rights of members of the public because they never suffered any significant consequences for engaging in the unlawful behavior in the past and apparently feel as if they can continue engaging in the unlawful behavior without any serious consequences.

96. The deliberate indifference by the NYPD and defendant City of New York towards its officers and defendants when they engage in such unlawful and unconstitutional behavior is the proximate cause of plaintiff's injuries because defendants knew that there would not be any consequences for violating plaintiff's rights and engaging in the unlawful conduct since the City of New York and the NYPD are deliberately indifferent when NYPD officers behave in that manner.

97. Given defendants' histories of allegations of violating the Constitutional Rights of members of the public, defendants should not have been patrolling the streets of New York and/or supervising other officers at the time of plaintiff's arrest in this case, and plaintiff's rights may not have been violated if the defendant City of New York had properly investigated and disciplined defendants and other officers throughout the NYPD prior to the date of plaintiff's arrest in this case.

98. The City of New York is deliberately indifferent to and fails to properly address situations when NYPD officers have engaged in police misconduct and violated the rights of members of the public.

99. The unlawful search, false arrest, false imprisonment, malicious prosecution, and denial of the right to due process/ a fair trial by the individually named defendants caused plaintiff to sustain physical, psychological, economic, and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth Amendment and Fourteenth Amendment Rights

100. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 99 with the same force and effect as if more fully set forth at length herein.

101. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff to be unlawfully searched, frisked, questioned, seized, denied due process, falsely arrested and falsely imprisoned, and maliciously prosecuted, without probable cause, in violation of plaintiff's right to be free from an unreasonable

seizure under the Fourth Amendment to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

102. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 101 with the same force and effect as if more fully set forth at length herein.

103. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

104. As a direct and proximate result of such acts, defendants deprived plaintiff of her rights under the laws of the State of New York and the United States Constitution.

105. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

106. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional, and psychological injuries.

THIRD CAUSE OF ACTION

Unlawful Search

107. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 106 with the same force and effect as if more fully set forth at length herein.

108. The illegal approach, pursuit, stop and search inside plaintiff's pockets and underneath his clothing, employed by defendants herein, and terminated plaintiff's freedom of movement through means intentionally applied.

109. Defendants lacked probable cause to search plaintiff.

110. As a direct and proximate result of such acts, defendants deprived plaintiff of her rights under the laws of the State of New York.

111. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

112. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FOURTH CAUSE OF ACTION

Malicious Prosecution

113. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 112 with the same force and effect as if more fully set forth at length herein.

114. The acts and conduct of the defendants constitute malicious prosecution under the laws of the United States Constitution, State of New York, and New York State common law.

115. Defendants commenced and continued criminal proceedings against plaintiff.

116. There was actual malice and an absence of probable cause for the criminal proceeding against plaintiff and for each of the charges for which he was prosecuted.

117. The prosecution and criminal proceedings terminated in plaintiff's favor on the aforementioned date.

118. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate plaintiff's Fourth Amendment rights.

119. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

FIFTH CAUSE OF ACTION

Violation of Plaintiff's Fifth Amendment and Fourteenth

Amendment Rights

Denial of Due Process/ Right to a Fair Trial

120. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 through 119 with the same force and effect as if fully set forth herein.

121. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Kings County District Attorney's Office.

122. Defendants filled out false and misleading police reports and a summons and forwarded them to the Kings County Criminal Court.

123. In withholding/creating false evidence against plaintiff, and in providing/withholding information with respect thereto, defendants violated plaintiff's constitutional right to due process/ a fair trial under the New York State Constitution and under the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

124. As a result of the foregoing, plaintiff sustained, inter alia, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings, and deprivation of his constitutional rights.

125. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

SIXTH CAUSE OF ACTION

Failure to Intervene

126. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 125 with the same force and effect as if more fully set forth at length herein.

127. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

128. Defendants failed to intervene to prevent the unlawful conduct described herein.

129. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of her safety, and he was humiliated and subject to other physical constraints.

130. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

SEVENTH CAUSE OF ACTION

Municipal Liability under 42 U.S.C. § 1983 for Policy of Deliberate Indifference When NYPD Officers Violate the Fourth, Fifth and Fourteenth Amendments to the United States Constitution

131. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 130 with the same force and effect as if more fully set forth at length herein.

132. Plaintiff was unlawfully searched, interrogated, frisked, falsely arrested, maliciously prosecuted plaintiff, and denied plaintiff then right to due process without an objective factual legal basis to seize, arrest and prosecute plaintiff pursuant to an unconstitutional policy and practice of the NYPD that is deliberately indifferent to the fact that many NYPD officers, including defendants engage in this type of misconduct on a regular basis without being disciplined and/ or retrained.

133. There is a policy, practice, or custom within the New York City Police Department, wherein New York City Police Officers illegally frisk, search, interrogate, falsely arrest, and fabricate evidence, without a specific, articulable factual basis supporting a reasonable suspicion or probable cause to believe the individual had violated any law or ordinance.

134. The NYPD and defendant City of New York are deliberately indifferent to the fact that its police officers persistently and pervasively continue to unlawfully and unconstitutionally violate the Fourth, Fifth, and Fourteenth Amendment Rights of members of the public.

135. Defendant City of New York is liable to plaintiff for the damages he suffered stemming from the unlawful frisk, search, interrogation, and false arrest of plaintiff because defendant City of New York is deliberately indifferent about its police officers' unlawful and unconstitutional behavior when NYPD officers unlawfully search, and falsely arrest members of the public when there is no factual basis to suspect the individual has committed a crime.

136. The City of New York has been deliberately indifferent about the fact that its police officers have been engaging in said unconstitutional behavior and the NYPD has not taken reasonable steps to ensure its police officers do not continue to engage in this unconstitutional behavior, through discipline or retraining police officers who engage in this behavior and violate the law and the Constitution of the United States.

137. The deliberate indifference by the NYPD and defendant City of New York towards its officers when they engage in such unlawful and unconstitutional behavior is the proximate cause of plaintiff's injuries because the officers knew there would not be any consequences for violating plaintiff's rights and engaging in the unlawful conduct since the City of New York and the NYPD are deliberately indifferent when NYPD officers behave in that manner.

138. As a result of defendant City of New York and the New York City Police Department's policy wherein New York City Police Officers illegally and unconstitutionally, search, and falsely arrest individuals without a specific, articulable factual basis supporting a reasonable suspicion or probable cause to believe the individual had violated any law or ordinance, and the New York City Police Department's deliberate indifference about the fact that New York City Police Officers routinely continue to conduct these searches, arrests, and criminal prosecutions, without reasonably articulable suspicion and/or probable cause, there is a pattern, policy, custom or practice of New York City Police Officers searching, falsely arresting and maliciously prosecuting individuals without a factual basis supporting a legal reason to do so.

139. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure, or rule of defendant City of New York, which is forbidden by the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States.

140. The aforementioned customs, policies, usages, practices, procedures and rules devised, implemented, enforced, promoted, encouraged, and sanctioned by the City of New York, including but not limited to : (a) the failure to adequately and properly screen, train, and supervise New York City Police Officers; (b) the failure to properly and adequately monitor and discipline New York City Police Officers; and (c) the overt and tactical encouragement and sanctioning of, and the failure to rectify, the New York City Police Departments suspicionless seizures, searches, arrests, and prosecutions.

141. The City of New York has acted with deliberate indifference to the Fourth and Fourteenth Amendment rights of plaintiff and other individuals. As a direct and proximate result of the acts and omissions of the City of New York, plaintiff has been deprived of her rights under the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution.

142. The foregoing customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the moving force behind the Constitutional violations suffered by plaintiff as alleged herein

JURY DEMAND

143. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

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PRAYER FOR RELIEF

WHEREFORE, plaintiff JERRY WADE demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest, and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
February 21, 2024

By: David M. Hazan
DAVID M. HAZAN
JACOBS & HAZAN, PLLC
Attorneys for Plaintiff
30 Vesey Street, 4th Floor
New York, NY 10007
(212) 577-2690

ATTORNEY'S VERIFICATION

DAVID M. HAZAN, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, PLLC**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters, I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not plaintiff is because plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
February 21, 2024

David M. Hazan

DAVID M. HAZAN